

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                      |                                     |                           |                                                       |                                    |                                 |
|--------------------------------------------------------------------------------------|-------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Cassandra Fenkel                                                    | Team:<br>Squad #10                  | CCRB Case #:<br>201507655 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                      |                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 09/09/2015 11:00 PM,<br>Thursday, 09/10/2015 12:00 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>3/9/2017    | Precinct:<br>109                                      |                                    |                                 |
| Date/Time CV Reported<br>Thu, 09/10/2015 8:16 AM                                     | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 09/10/2015 8:16 AM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |
|             |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Andrew Lisi     | 07738  | 948074 | 109 PCT |
| 2. POM Richard Munger  | 08484  | 943591 | 109 PCT |
| 3. POM Neil Porter     | 10154  | 911139 | 109 PCT |
| 4. POM Eric Dieumegard | 02743  | 957543 | 109 PCT |

| Officer(s)              | Allegation                                                                                        | Investigator Recommendation |
|-------------------------|---------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Neil Porter     | Abuse: On September 9, 2015, PO Neil Porter threatened to arrest § 87(2)(b)                       | A . Exonerated              |
| B . POM Richard Munger  | Abuse: On September 9, 2015, PO Richard Munger threatened to arrest § 87(2)(b)                    | B . Exonerated              |
| C . POM Neil Porter     | Abuse: On September 9, 2015, PO Neil Porter threatened to damage and seize § 87(2)(b)'s property. | C . Unsubstantiated         |
| D . POM Andrew Lisi     | Abuse: On September 10, 2015, PO Andrew Lisi threatened to arrest § 87(2)(b)                      | D . Unsubstantiated         |
| E . POM Eric Dieumegard | Abuse: On September 10, 2015, PO Eric Dieumegard threatened to damage § 87(2)(b)'s property.      | E . Unsubstantiated         |

### Case Summary

On September 9, 2015, at approximately 11:00 p.m. PO Richard Munger and PO Neil Porter arrived at § 87(2)(b)'s home, located at § 87(2)(b) in Queens after receiving a radio run concerning a burglary at the location. Upon their arrival, PO Munger and PO Porter spoke with § 87(2)(b)'s landlord's son-in-law and a realtor, identified by the investigation as § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) explained that § 87(2)(b) was a previous tenant who moved out months ago, but took it upon himself to move back in without permission and changed the locks. After speaking with § 87(2)(b) and § 87(2)(b) the officers spoke with § 87(2)(b). § 87(2)(b) stated that PO Porter informed him that he knew he broke into the residence and allegedly told him, "You're going to jail. I'm going to arrest you" (**Allegation A**). § 87(2)(b) presented the officers with his driver's license, which listed his address at § 87(2)(b), and also showed the officers a copy of his lease. § 87(2)(b) alleged that after speaking again with § 87(2)(b) PO Munger allegedly stated, "You're going to jail tonight" and reached back to his belt area and lifted his handcuffs up (**Allegation B**). § 87(2)(b) then offered to show PO Munger and PO Porter that he had furniture inside his apartment as further proof of his residency. At some point during their conversation, PO Porter turned the locking mechanism of § 87(2)(b)'s front door, and allegedly stated, "If you close that lock I'm going to arrest you (**Allegation A**). PO Porter informed § 87(2)(b) that he would allow him to stay at the residence for the night, but that officers would return the next day. PO Porter allegedly threatened, "We're gonna knock the door down, break it down, and we're gonna take your dogs and put them in the pound" (**Allegation C**). PO Munger and PO Porter then left the scene. § 87(2)(b) was not arrested or issued a summons.

On September 10, 2015, at approximately 10:40 p.m. PO Andrew Lisi and PO Eric Dieumegard arrived at § 87(2)(b) after receiving a precinct assignment for the location. PO Lisi and PO Dieumegard spoke with § 87(2)(b) in his doorway. PO Lisi allegedly told § 87(2)(b) "We know you don't live here. You're definitely getting arrested now" and "Stay where you are. You're being arrested" (**Allegation D**). § 87(2)(b) asked the officers if he could go inside to put his shoes on and use the bathroom, and PO Dieumegard allegedly told § 87(2)(b) "If you don't come back out I'm gonna break the door down and shoot the dogs" (**Allegation E**). § 87(2)(b) was not arrested or issued a summons, and PO Lisi and PO Dieumegard left the scene without additional incident. There is no video footage.

### Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) who opted to have his complaint investigated.
- § 87(2)(b) has not filed a notice of claim with the NYC Comptroller's Office regarding the incident (Board Review 1).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 3).
- PO Porter has been a member of service for 23 years and has had 3 prior CCRB complaints filed against him involving 3 allegations, none of which have been substantiated § 87(2)(g) (Board Review 4).

- PO Munger has been a member of service for 8 years and this is the first CCRB complaint filed against him (Board Review 4).
- PO Lisi has been a member of service for 6 years and this is the first CCRB complaint filed against him (Board Review 4).
- PO Dieumegard has been a member of service for less than 1 year and this is the first CCRB complaint filed against him (Board Review 4).

#### **Attempts to Identify Civilian Witnesses**

- The CCRB established contact with the following possible witnesses to the incidents; § 87(2)(b) and § 87(2)(b) none of whom raised any allegations of police misconduct during their phone statements. § 87(2)(b) and § 87(2)(b) remained near the end of § 87(2)(b)'s driveway while § 87(2)(b) interacted with the officers at his door, and therefore were likely to hear substantial detail of the interaction between § 87(2)(b) and the officers.

#### **Findings and Recommendations**

##### **Explanation of Subject Officer Identification:**

In his CCRB statement, § 87(2)(b) identified one of the subject officers who responded on September 9, 2015, as an officer named "Mulligan." Though there is no "Mulligan" assigned to the 109<sup>th</sup> precinct, the CCRB identified PO Munger based on the name similarity. PO Munger was partnered with PO Porter, both of whom acknowledged their interactions with § 87(2)(b) § 87(2)(g).

The NYPD Sprint and Roll Call identified PO Lisi and PO Dieumegard as the officers who responded to § 87(2)(b)'s home on September 10, 2015 (Board Review 5, Board Review 6). In his CCRB statement, § 87(2)(b) described the subject officers as an Asian male and a white male. PO Dieumegard's pedigree information in the CTS database identified him as an Asian male, and PO Lisi was identified as a white male. Both officers acknowledged their interactions with § 87(2)(b) § 87(2)(g).

##### **Allegations not pleaded**

- § 87(2)(g)
- **Refusal to provide name and shield:** A refusal to provide name and shield allegation has not been pleaded. Though § 87(2)(b) stated he was unable to see any of the officers' names and shield numbers because there was a flashlight on, § 87(2)(b) never requested or informed any officer that he wanted the information or could not see it.

**Allegation A – Abuse of Authority: On September 9, 2015, PO Neil Porter threatened to arrest § 87(2)(b)**

**Allegation B –Abuse of Authority: On September 9, 2015, PO Richard Munger threatened to arrest § 87(2)(b)**

It is undisputed that PO Porter and PO Munger arrived at § 87(2)(b)'s home after receiving a radio run of a burglary at the location (Board Review 6). It is also undisputed that § 87(2)(b) was involved in a landlord-tenant dispute concerning his residency at the incident location, § 87(2)(g)

§ 87(2)(b) testified PO Munger and PO Porter knocked on his door, and PO Porter informed § 87(2)(b) he had broken in to the residence, which § 87(2)(b) denied. PO Porter allegedly stated, “You’re going to jail. I’m going to arrest you.” § 87(2)(b) then presented the officers with a copy of his lease and driver’s license. PO Porter and PO Munger then spoke with the landlord’s son-in-law, § 87(2)(b) at the end of § 87(2)(b)'s driveway. When PO Porter and PO Munger returned to § 87(2)(b)'s door, PO Munger allegedly told § 87(2)(b) “You’re going to jail tonight” and lifted his handcuffs up from his belt area. § 87(2)(b) continued to show the officers his lease and driver’s license, and invited PO Porter and PO Munger inside to see his furniture as further proof of his residency. At some point during their conversation, PO Porter turned the locking mechanism of § 87(2)(b)'s front door in order to prevent § 87(2)(b) from closing it, and allegedly stated, “If you close that lock I’m going to arrest you.” (see § 87(2)(b)'s CCRB statement).

In his initial phone call with the CCRB, § 87(2)(b) § 87(2)(g) that PO Munger and PO Porter threatened to arrest him, § 87(2)(g)

§ 87(2)(b) In his initial telephone statement with the CCRB, § 87(2)(b) alleged that PO Munger and PO Porter told him, “If you want to open your mouth and say another word we’ll arrest you right now” (see § 87(2)(b)'s initial phone statement).

PO Porter testified that after speaking with who he believed was the landlord, who informed him that someone was illegitimately residing inside the location, PO Porter and PO Munger knocked on § 87(2)(b)'s door. § 87(2)(b) answered, and PO Porter asked § 87(2)(b) for his side of the story. § 87(2)(b) explained that he lived at the apartment, and that the realtor was trying to remove him in order to sell the building. PO Porter described § 87(2)(b)'s demeanor as excited and irrational, as § 87(2)(b) moved around a lot while speaking and made statements regarding his health. PO Porter could not recall with specificity if he told § 87(2)(b) he could be arrested, but noted that it was possible because § 87(2)(b) was accused of illegally entering the residence. PO Porter denied that he or PO Munger threatened to arrest § 87(2)(b) (see PO Porter’s CCRB statement).

PO Munger testified that upon their arrival, he and PO Porter spoke with § 87(2)(b) a realtor, and § 87(2)(b) the landlord’s son-in-law, who informed him that § 87(2)(b) had taken it upon himself to move back into the residence and change the locks after previously being kicked out. PO Munger then spoke with § 87(2)(b) While speaking with § 87(2)(b) both PO Munger and PO Porter informed him that based on the accusations of breaking in and changing the locks to the residence, § 87(2)(b) could be arrested and charged with breaking and entering. PO Munger denied that he told § 87(2)(b) “You’re going to jail tonight” while reaching back and grabbing his handcuffs. PO Munger denied that he or PO Porter threatened to arrest § 87(2)(b) (see PO Munger’s CCRB statement).

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. It is therefore recommended that **Allegation A** and **Allegation B** be closed as **exonerated**.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) testified that after speaking with PO Porter and PO Munger regarding the legitimacy of his residency at the location, PO Porter informed § 87(2)(b) he could stay at his apartment for the night. However, PO Porter allegedly threatened that officers would return and would “knock the door down, break it down, and we’re gonna take your dogs and put them in the pound.” § 87(2)(b) thanked PO Munger and PO Porter for their help, and PO Munger and PO Porter left the location (see § 87(2)(b) s CCRB statement).

PO Porter denied that there was any conversation about § 87(2)(b)'s dogs, and denied he or PO Munger told § 87(2)(b) "We're gonna knock the door down, break it down, and we're gonna take your dogs and put them in the pound" (see PO Porter's CCRB statement). PO Munger § 87(2)(g) stated that he did not recall there being any conversation about § 87(2)(b)'s dogs, and denied that any officer threatened to damage § 87(2)(b)'s property or take his dogs away (see PO Munger's CCRB statement).

**Allegation D – Abuse of Authority: On September 10, 2015, PO Andrew Lisi threatened to arrest § 87(2)(b)**

**Allegation E – Abuse of Authority: On September 10, 2015, PO Eric Dieumegard threatened to damage § 87(2)(b) s property.**

§ 87(2)(g)

§ 87(2)(b) testified that PO Lisi and PO Dieumegard arrived at his home, and spoke with him in his doorway. During their conversation, PO Lisi allegedly told § 87(2)(b) “We know you don’t live here. You’re definitely getting arrested now” and “Stay where you are. You’re being arrested.” PO Lisi then informed § 87(2)(b) that § 87(2)(b) complained

about him at the 109<sup>th</sup> precinct stationhouse. § 87(2)(b) asked PO Lisi if he could go inside to put shoes on, and PO Lisi told § 87(2)(b) no. § 87(2)(b) then asked PO Dieumegard if he could go inside to use the bathroom and put his shoes on, and, PO Dieumegard allegedly replied, “If you don’t come back out I’m gonna break the door down and shoot the dogs” (see § 87(2)(b) s CCRB statement).

In a phone call with § 87(2)(b) § 87(2)(b) s girlfriend and a witness to the incident, § 87(2)(b) recalled a discussion about § 87(2)(b) s dogs, breaking down the apartment door, and § 87(2)(b) going inside to use the bathroom. However, § 87(2)(b) could not recall with specificity exactly what the officers said to § 87(2)(b) also alleged that § 87(2)(b) was threatened with arrest, but was unable to recall specifically who threatened § 87(2)(b) or what exactly was said (see § 87(2)(b) s CCRB statement).

PO Lisi testified that he and PO Dieumegard arrived at the location after receiving a precinct assignment. PO Lisi spoke to § 87(2)(b) in his doorway, and informed him that § 87(2)(b) was trying to evict him. PO Lisi requested § 87(2)(b) s documentation to prove his residency at the location, and § 87(2)(b) provided his lease and driver’s license which listed his address as § 87(2)(b). PO Lisi denied that he or any other officer threatened to arrest § 87(2)(b). At some point during their conversation, § 87(2)(b) went inside his apartment to dress himself, as he was asleep at the time of the officers’ arrival. PO Lisi denied that there was any conversation regarding § 87(2)(b) s dogs. PO Lisi was unconcerned that § 87(2)(b) would not come back out, and denied PO Dieumegard threatened to break down § 87(2)(b) s door and shoot his dogs if he did not come back outside (see PO Lisi’s CCRB statement).

PO Dieumegard § 87(2)(g) testified that § 87(2)(b) answered the door with a stack of papers in an attempt to prove he legally resided at the location. However, PO Dieumegard denied that § 87(2)(b) provided an actual lease or his driver’s license. PO Dieumegard denied that PO Lisi threatened to arrest § 87(2)(b) or informed § 87(2)(b) that he was under arrest. At some point during their interaction, PO Lisi went to speak with § 87(2)(b) and a relator near the end of § 87(2)(b) s driveway and PO Dieumegard remained at the door with § 87(2)(b). § 87(2)(b) informed PO Dieumegard he wanted to go inside to use the bathroom and get his shoes. PO Dieumegard asked § 87(2)(b) to wait, as he was unsure if it was the right time for § 87(2)(b) to go inside. PO Dieumegard noted he was a new officer at the time of the incident, and from his perspective § 87(2)(b) was still an unknown person. PO Dieumegard feared that § 87(2)(b) would go back inside the apartment and not return. § 87(2)(b) ultimately went inside for approximately 5 minutes to get his shoes and use the bathroom. PO Dieumegard denied that he told § 87(2)(b) “If you don’t come out I’m gonna break the door down and shoot the dogs” and denied that PO Lisi threatened to damage § 87(2)(b) s property or shoot his dogs (see PO Dieumegard’s CCRB statement).

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation D** and **Allegation E** be closed as **unsubstantiated**.

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Squad:

Investigator: \_\_\_\_\_  
Signature Print Date

Pod Leader: \_\_\_\_\_  
Title/Signature Print Date

Attorney: \_\_\_\_\_  
Title/Signature Print Date